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IRAN

Human Rights Developments

Human rights progress continued to be held hostage to increasingly polarized conflict within the leadership of the Islamic Republic. The conflict resulted in disturbing outbreaks of political violence which threatened to quash hopes for reforms pledged by President Khatami since his election in 1997. A series of killings and "disappearances" of independent writers and government critics at the end of 1998 exposed the involvement of state officials in the illegal violent suppression of dissent. Student protests over restrictions on press freedom mushroomed into days of violent street protests in which competing political factions took their differences to the streets of Tehran and other major cities. Reformers faced criticism that their calls for greater freedom and democracy were resulting in anarchy.

In some cases, reform efforts were met with reactions from some in the leadership which led to a worsening in the human rights situation. For example, efforts to promote freedom of the press were met with attacks on journalists and editors, closures of newspapers, and proposals to pass new laws facilitating the prosecution of journalists for expressing their nonviolent opinions, and narrowing the scope of permitted debate. An even livelier debate about how to govern in an Islamic state prompted conservatives to declare that those who promoted new interpretations of Islam should be considered as "corrupt on earth" and sentenced to death.

Continuing efforts by the Khatami government to normalize relations with Europe and the rest of the world appeared to have provoked conservative opponents of such normalization to target religious minorities for persecution, and to engage in other inflammatory acts designed to provoke international outrage and embarrass the government.

Participation in the political process continued to be restricted to supporters of the clerical regime that has ruled Iran since the 1979 revolution. In February reformists associated with President Khatami overcame efforts by conservatives to bar their candidacy in direct elections to local and regional councils throughout Iran and triumphed at the polls.

The brutal killings of veteran political activists Darioush and Parvaneh Forouhar in their Tehran home on November 22, 1998, were part of a wave of killings and "disappearances" which created fear and uncertainty in intellectual circles, but also led to the resignation of the minister of intelligence, whose agents were blamed for the killings, and to the exposure of a sinister arm of the government engaged in the use of murder as a political weapon. Other victims of killings in November and December 1998 included Mohammad Mokhtari, and Mohammad Pouyandeh, writers and free-expression advocates who both had been briefly detained in October 1998. Pirouz Davani, a political activist for a banned left-wing organization "disappeared" in September 1998 and was believed to have been killed for his political views.

Although the killing of political dissidents at home and abroad was not new to Iran, popular reaction to these deaths was strong and immediate. Thousands of mourners marched in the funeral procession for slain leaders of the Iran Nation Party Darioush and Parvaneh Forouhar in Tehran on November 30. Different branches of the government, including the judiciary and the National Security Council (NSC), the latter headed by President Khatami, announced that inquiries would be established into the

killings and the perpetrators brought to justice. Whereas the judiciary spoke of mysterious "domestic and external hands" being behind the murders, the NSC inquiry identified serving agents within the Ministry of Intelligence as responsible and took a number of them into custody. Minister of Intelligence Ghorbanali Dorri-Najafabadi and several of his senior deputies resigned in February as the extent of the ministry's involvement became known. However, although senior officials repeatedly promised an open trial of the suspects, no trial had started by the end of the year.

Speculation about where the ultimate responsibility for the killings lay played a direct role in the year's most traumatic incidents of political violence, the student protests of July and their suppression by a combination of uniformed and irregular forces. In June Salam, one of the most popular pro-reform newspapers, published an internal memorandum said to have been written by Saeid Emami, a detained ministry of intelligence official. In the memo, Emami sets out a policy to harass and stifle the independent press through a variety of legal and extralegal measures, remarkably similar to the actual experiences of the journalists and the press throughout the year.

In July, Salam was closed down and charges of spreading false information brought against its publisher, Mohammad Mousavi Khoeniha, in a Special Court for the Clergy. The closure triggered a peaceful protest by students at Tehran University on July 8. During the early hours of July 9, members of an unidentified uniformed militia force entered the university dormitories while the students slept and attacked them, throwing some out of windows and taking some away. The dormitory rooms were ransacked and furniture and equipment smashed. According to the witnesses at least four students were killed in the assault on the dormitory, three hundred wounded, and four hundred taken into detention.

The next day, students took to the streets to protest the assault on the dormitories, to demand an inquiry, and to call for the release of their colleagues from detention. The demonstration was broken up by hard-line enforcers associated with conservative leaders within the government, the Ansar-e Hezbollahi (Partisans of the Party of God), wielding clubs and chains while members of the security forces stood by or joined in the assault on the demonstrators.

However, student protests continued in Tehran on July 10 and spread to other cities with calls for the dismissal of Tehran police chief, Hedayat Lotfian and for the prosecution of those responsible for the raid. Outrage about the brutality of the initial night-time assault on the dormitories spread throughout Iranian society. Both President Khatami and Supreme Leader Ayatollah Ali Khamene'i condemned the raid and the minister of the interior, Abdullah Mousavi-Lari declared that it had taken place without any authorization from the ministry.

The student protests, also an outlet for popular expression of dissatisfaction with government policies in a wide range of areas, including the dire economic situation, the lack of opportunities for university graduates, restrictions on basic freedoms, and the slow pace of reform were likened by commentators to the mass demonstrations in 1978 and 1979 which preceded the overthrow of the Shah. The popular mood changed abruptly when the demonstrations deteriorated into looting and vandalism on July 12 and July 13. The leadership, with President Khatami and Ayatollah Khamene'i acting in concert, moved swiftly to ban further protests and to arrest hundreds of purported ringleaders. The student movement distanced itself from the activities of looters and lawbreakers, making a distinction between the peaceful protests of July 9 - 11 and the riotous behavior of the following two days.

Blame for the unrest was pinned on hostile, foreign-backed forces and several conservative leaders suggested that public support for a reform agenda was sowing confusion and leaving the nation vulnerable to attack by its enemies. In the following weeks the conservative press carried statements by Revolutionary Guard leaders calling for an end to President Khatami's "dangerous experiments with democracy."

President Khatami weathered this most serious challenge to his leadership to date, emphasizing a commitment to the rule of law. Senior Tehran police chiefs were charged with responsibility for allowing the raid on the dormitories, though the head of Tehran police, Hedayat Lotfian was exonerated of any responsibility, and a hard-hitting report that criticized the police and conservative militia groups was issued by the NSC in mid-August. President Khatami stated on August 12 that "police officers acting outside their authority and non-military personnel" were responsible for the

dormitories raid, but no public criminal proceedings ensued, leaving the full story of who ordered the raid and which forces carried it out still shrouded in mystery. Eyewitnesses confirmed that the main force involved in the violent assault was not the Ansar-e Hezbollahi but a much more disciplined, better equipped, uniformed force which arrived at the scene in its own vehicles, entered the campus with cooperation from police officers, and vanished into the dawn a few hours later. Mystery also surrounded responsibility for the incidents of looting and property damage on July 12 and 13 with speculation that the street violence was initiated by state-backed agent-provocateurs in order to discredit and undermine the protest movement.

Following the unrest, hundreds of students remained in detention or were unaccounted for. The head of Tehran's Revolutionary Court stated on September 11 that four unnamed individuals had been sentenced to death in connection with the pro-democracy protests. The sentences were handed down in secret Revolutionary Court trials in which procedures fall far short of international fair trial standards. In an interview with the conservative daily newspaper Jomhuri-Eslami, Hojatolislam Gholamhossein Rahbarpour said two of the sentences had been confirmed by the Supreme Court and held out the possibility of further death sentences among the "thousand arrested" during the protests.

The struggle between conservatives and the independent press continued to result in restrictions on freedom of expression including closures of newspapers and prosecutions of writers editors and publishers. Independent newspapers such as Rah-e No (New Way), Jame'eh Salem (Healthy Society), Iran-e Farda (Tomorrow's Iran), and Adineh (Friday), a cultural monthly were ordered closed by the Press Court. However, most continued to publish despite the closure orders, justifying their continued operation on the grounds that they had not received the formal closure orders. In the cases of Jame'eh Salem and Adineh, the jury found them in violation of the Press Law but recommended minimum punishment, not including closure. The judge disregarded the jury's recommendations and closed them both.

Following the Adineh decision, the jury protested the judge's action by not attending the next hearing, involving a complaint against Keyhan (Galaxy) newspaper, leading the judge to dismiss the five jurors who had absented themselves. Unable to proceed with trials after dismissal of the jurors, he required that accused persons post high bail in order to avoid detention. In May and June two prominent supporters of President Khatami, Fereydoon Verdinejad, the director of the official Islamic Republic News Agency (IRNA), and Mohammed Reza Zohdi, the publisher of Arya, a daily newspaper, were arrested and released on payments of the equivalent of U.S.\$50,000 and U.S.\$30,000 bail respectively. In August 1999, the High Judicial Disciplinary tribunal found that judge Saeid Mortazavi had exceeded his authority in ordering the dismissal of the jurors, but recommended no punishment and he remained in office. In September the press court ordered the closure of Neshat (Happiness) and in a subsequent trial, sentenced its publisher, Latif Safari, to a thirty month suspended prison sentence and banned him from his profession for five years.

The role of the jury in press courts was one among several contentious elements in the system of regulation of the press. Another was the use of courts other than the press courts to punish writers for views expressed in the media. In November 1998, Hamshahri reported that the Parliamentary Research Center was drafting legislation that would make writers, editors, and publishers liable to prosecution in courts other than press courts if their articles were deemed to be offensive. On March 4, a Special Court for the Clergy ruled that it would prosecute any newspaper that even mentioned the name of Ayatollah Hossein-Ali Montazeri, at one time the designated successor to Ayatollah Khomeini as leader but who has emerged as a persistent critic of the institution of velayat-e faqih, on which the authority of the leader of the Islamic Republic rests. Since Ayatollah Montazeri's removal as designated successor by Ayatollah Khomeini in 1988, Montazeri and his relatives and followers have been subjected to persecution. In February, Mohsen Kadivar was detained and a case brought against him in a Special Court for the Clergy arising from his journalistic writings.

In March, Zan (Woman) magazine was ordered closed by an Islamic Revolutionary Court for publishing part of a New Year's greeting to the Iranian people from the former empress, Farah Pahlavi, now living in exile, and for publishing a cartoon deemed to be defamatory of the Islamic juridical tradition of diyah (blood money). Other magazines published Farah Pahlavi's message in full without any repercussions.

In June, a Revolutionary Court ordered the closure of the student bi-weekly newspaper Hoveyat-e Khish (Self Identity). Its editor, Heshmatollah Tabarzadi, and director, Hossein Kashani were detained on accusations of "spreading anti-Islamic propaganda." Kashani was released in June but Tabarzadi remained in detention. Mohsen Saeidzadeh, who had been detained by order of a special Court for the Clergy in June 1998 for his writings on women's rights and Muslim family law was released from detention in November 1998.

In the face of an unrelenting conservative campaign against press freedom, Deputy Minister of Culture and Islamic Guidance Ahmad Borghani resigned in January. The minister, Ataollah Mohajerani, was himself the subject of an impeachment motion which he survived by a vote of 135 to 121. Nevertheless, the pressure on Mohajerani and others associated with greater press freedom continued. During May charges were prepared against a senior official in the Ministry of Culture and Islamic Guidance, Issa Sakharkhiz. He faced up to three years in prison after granting permission to Zan newspaper to produce a special edition for the Tehran International Book Fair while the newspaper was under a closure order. His trial opened before a Special Court for Public Employees on May 31, and continued as of this writing.

In addition to efforts to control the press through closures, prosecutions of editors and publishers, and intimidation, conservative deputies submitted amendments to the Press Law to the Majlis which passed a first reading on July 7, by 125 votes to ninety with fifty-five deputies absent. The proposed amendments sought to change the composition of the five-person Press Supervisory Board and the three-person selection board of the press jury by adding representatives of the Islamic Propagation Organization and the Friday Congregational Prayer Leaders. The amendments would also authorize Revolutionary Courts to prosecute writers and journalists who overstep the bounds of permitted criticism.

The amendments were denounced by reformists including Minister of Culture Mohajerani, who told the parliament during the debate that "we have to create laws in accordance with freedom, not freedom according to our laws." In September, Head of the Judiciary Sayyed Mahmoud Hashemi Shahroudi, who had replaced leading conservative Ayatollah Mohammad Yazdi in August, criticized the proposed amendments to the press law and stated that the Islamic Commission for Human Rights, a judicial body, would be proposing its own draft amendments. However, Ayatollah Khamene'i himself resumed attacks on independent newspapers which he accused of "creating mental insecurity" by calling into question the commands of Islam. Conservatives went on the offensive against newspapers which had criticized the use of the death penalty, declaring that such comments constituted apostasy and were "against Islam."

Freedom of the press was not the only area of human rights which suffered because of the continuing struggle between reformists and hardliners in the government. In November 1998, police raided more than 500 private homes and offices being used by the Bahai Institute for Higher Education, a previously tolerated institution providing educational opportunities to Bahais who were denied entry to ordinary universities and colleges. Thirty-five faculty members in the institute were detained, and four were sentenced to between three and ten years by a Revolutionary Court for disturbing national security, bringing to seventeen the number of Bahais in prison because of their faith by the end of the year. Sina Hakimian was sentenced to ten years imprisonment, Farzad Khajeh-Sharifabadi and Habibullah Ferdousian-Najafabadi to seven years and Zeiyollah Mir Zamanpour to three years. In June, the government announced the arrest of thirteen members of the Jewish community on charges of spying for Israel. The government did not reveal any evidentiary basis for the arrests, which had taken place in February and March, and held the detainees incommunicado for many months. The arrests appeared designed to embarrass President Khatami in his attempts to normalize relations with the West. After the announcement of the arrests, the president spoke out on the need to respect the rights of Iran's religious minorities, but other government leaders announced that the thirteen were guilty even before their trial.

The controversy continued over the jailing of former Mayor of Tehran Gholam Hossein Karbaschi, seen as a victim of factional conflict between reformists and conservatives. In May the trial began of eleven police officers accused of torturing two district mayors and other senior municipality officials in an attempt to gather evidence against the mayor. This was the first time that torture charges had

been brought against police officers, although there were credible reports that use of torture remained widespread.

The holding of the first elections for local town and village councils in February represented a substantial achievement in participation in public affairs at the local level. Up until the last moment, it was unclear whether candidates associated with reform policies would be permitted to stand by a conservative-controlled Supervisory Council appointed by the parliament. Several prominent candidates, including the impeached former minister of the interior, Abdullah Nouri, were rejected by the council because of their "lack of belief in the clerical system," but their rejection was overruled by an arbitration committee established by President Khatami to settle differences between candidates and the council. In the end, reformist candidates triumphed at the polls. The issue of how candidates for the February 2000 parliamentary elections will be selected continued to be debated. In August, parliament agreed on a revised form of vetting which would require the council to provide rejected candidates with written reasons for their rejection. In the past, no reasons were given and a large proportion of prospective candidates were excluded. However, in September, the Council of Guardians vetoed the proposed amendment to the vetting procedure. Opposition political parties like the Freedom Movement of Iran continued to be denied permission to organize or to field candidates in elections.

Defending Human Rights

There were no independent human rights organizations active inside the country, and the government continued to obstruct visits by international monitors from nongovernmental organizations, and refused access to the U.N. special representative on Iran, Maurice Copithorne of Canada. Nevertheless, human rights monitoring and open debate of the government's human rights policies was a notable aspect of the activities of the independent press. Several prominent intellectual figures like Abdol Karim Soroush and Mohsen Kadivar developed sophisticated critiques of government policies in their writings advocating the need for respect for human rights as part of Islamic government. They suffered threats and persecution, but continued to disseminate their ideas. In August a group of prominent writers, editors, publishers, and journalists announced the formation of the Association to Protect Press Freedom which championed international standards in the field of freedom of expression in its founding declaration. It was not officially recognized, but it was able to function. In a positive move the government did register the National Association for Children's Rights in Iran which advocated the adoption of standards set out in the U.N. Convention on the Rights of the Child.

Human Rights Watch was able to send its researcher, who carries an Iranian passport, to Iran; however, other Human Rights Watch staff members, and representatives of other international NGOs were not granted visas.

Former deputy prime-minister Abbas Amir Entezam remained in prison following his arrest in September 1998 for making critical comments about Assadollah Lajevardi, the assassinated former head of Evin Prison, where he had spent seventeen years in prison on spying charges he has always denied. Entezam was a witness to widespread violations of human rights during his time in detention and has spoken out about his experiences. His trial on slander charges opened in February, but did not reach a verdict. He continued to be held in detention pending the completion of his trial on questionable grounds.

The Role of the International Community

United Nations

Human rights violations in Iran continued to be a subject of concern to the United Nations (U.N.) General Assembly and the U.N. Commission on Human Rights. However, the international body increasingly recognized the reform efforts of President Khatami, who was praised by Secretary-General Kofi Annan as a "far-sighted leader." The General Assembly unanimously declared the year 2001 as the Year of Dialogue Among Civilizations, as proposed by President Khatami in his address to the Assembly in September 1998. The tone of the resolution passed by the commission was more positive than in previous years, noting a number of positive developments. It praised the expansion of freedom of expression and the emphasis on the rule of law. It noted with approval the local elections. And it praised the investigation of last year's series of political murders. It criticized torture and

discrimination against minorities, as well as the large number of executions. In his report to the commission, Special Representative Copithorne praised President Khatami for trying "to create a more tolerant society in which the rule of law plays a part and which generally recognizes human rights to a considerable degree greater than in the past."

European Union

Despite some localized difficulties, notably in the bilateral relationship with Germany, the improvement in relations between the European Union (E.U.) and Iran continued. The European governments were explicit in their support of reform efforts. For example, in August, the new Norwegian ambassador to Tehran, resuming diplomatic relations for the first time since the Norwegian translator of Salman Rushdie's *The Satanic Verses* was stabbed to death by an Iranian hit man, said that Norway would be doing everything it could to support political reform.

In December 1998 the German Supreme Court confirmed the guilty verdict against Kazem Darabi, accused of having been dispatched by the Iranian government to murder Kurdish dissidents in Berlin in 1992. The Iranian government continued to hold German national Helmut Hoffer on charges of having had illicit relations with a Muslim woman. Bilateral relations were also strained by negotiations over the rescheduling of the payment of German loans to Iran. Trade relations with other European countries moved forward, notably in the energy sector.

Although the Khordad Foundation announced that its bounty for the killer of British author Salman Rushdie was still in force, the pledge in 1998 that Iranian authorities would do nothing to implement the death threat was sufficient to permit the exchange of ambassadors between the two countries in July. British Foreign Secretary Robin Cook stated in September that the British government was confident that the Iranian government had "stood by that policy" on Salman Rushdie. President Khatami carried out a state visit to Italy in April, including an audience with the pope at the Vatican. In September, President Thomas Klestil of Austria was the first European head of state to visit the Islamic Republic. He expressed the E.U.'s "dismay and preoccupation over the human rights situation" in Iran, and singled out the situation of four people sentenced to death because of their alleged part in student unrest in July, and the imprisonment of thirteen Iranian Jews facing trial on charges of spying for Israel. While in Tehran, President Klestil expressed his support for "President Khatami's reform policy," and emphasized the development of bilateral economic relations.

United States

There were signs of some easing in the relationship between Iran and the United States, notably in the lifting of the prohibition of the export of U.S.- produced foodstuffs to Iran in May. The U.S. government emphasized that no change of policy should be read into the lifting of its embargo. The U.S. continued to express objections to Iranian policies in the areas of weapons proliferation, support for terrorism, and human rights. In March, Secretary of State Albright characterized Iranian policies in each of these areas as "disappointing." The annual U.S. report on terrorism listed the Iranian opposition groups the National Council of Resistance and the People's Mojahedine Organization as terrorist organizations. The State Department's annual report on human rights practices spoke of "some improvements in a few areas" but noted that overall "the government's human rights record remained poor."

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